

**Regulation 710.01-R(1): Nutrition Program Sales and Account Balances -
School Nutrition Program Civil Rights Complaint Procedure**

Status: DRAFT - 2nd Reading

Original Adopted Date: 07/01/2017 | Last Revised Date: 06/10/2025 | Last Reviewed Date: 06/10/2025

USDA Child Nutrition Programs in Iowa

Procedures for Handling a Civil Rights Complaint

1. Civil rights complaints related to the National School Lunch Program, School Breakfast Program, Afterschool Care Snack Program, Summer Food Service Program, Seamless Summer Option, or Child and Adult Care Food Program are written or verbal allegations of discrimination based on USDA protected classes of race, color, national origin, religion, sex, disability, age, marital status, family/parental status, income derived from public assistance program, political beliefs, or reprisal or retaliation for prior civil rights activity. ~~and disability.~~
2. Any person claiming discrimination has a right to file a complaint within 180 days of the alleged discrimination. See below for additional Iowa Civil Rights information. A civil rights complaint based on the protected classes listed in #1 above must be forwarded to the address on the nondiscrimination statement.
3. All complaints, whether written or verbal, must be accepted by the School Food Authority (SFA)/Sponsor/Organization and forwarded to USDA at the address or link on the nondiscrimination statement within 5 calendar days of receipt. An anonymous complaint should be handled the same way as any other. Complaint forms may be developed, but their use cannot be required. If the complainant makes the allegations verbally or in a telephone conversation and is reluctant or refuses to put them in writing, the person who handles the complaint must document the description of the complaint.
4. There must be enough information to identify the agency or individual toward which the complaint is directed and indicate the possibility of a violation. Every effort should be made to obtain at least the following information:
 - Name, address and telephone number or other means of contacting the complainant;
 - The specific location and name of the organization delivering the program service or benefit;
 - The nature of the incident(s) or action(s) that led the complainant to feel there was discrimination;
 - The basis on which the complainant feels discrimination occurred (race, color, national origin, sex, age, or disability);
 - The names, titles, and addresses of people who may have knowledge of the discriminatory action(s); and
 - The date(s) when the alleged discriminatory action(s) occurred or, if continuing, the duration of such action(s).
5. USDA is the cognizant agency for the Child Nutrition Programs listed and therefore is the first contact for the ~~six~~ protected classes listed in #1 above, for complaints received within 180 days. Civil rights complaints must be submitted to the USDA Office of Civil Rights within five calendar days of receipt and no later than 180 days of the discriminatory act. The ~~email link~~ for submission of a complaint is: program.intake@usda.gov
6. In Iowa, protected classes also include ~~actual or potential parental, family or marital status,~~ sexual orientation, ~~religion or~~ ~~and~~ creed and complaints can be filed up to 300 days of occurrence. The address for Iowa complaints is: Iowa Civil Rights Commission, 6200 Park Avenue, Suite 100, Des Moines, IA 50321-1270. ; phone number 515-281-4121, 800-457-4416; website: <https://icrc.iowa.gov/>.

Bureau of Nutrition and Health, IDOE, 12/2021

I.A.C. Iowa Administrative Code

281 I.A.C. 58

Description

[Education - Breakfast and Lunch Program](#)

I.C. Iowa Code

Iowa Code § 283A

Description

[School Meal Programs](#)

U.S.C - United States Code

42 U.S.C. §§ 1751

Description

[Public Health - School Lunch Program](#)

Cross References

710.04

Description

[Meal Charges](#)